IN THE DISTRICT COURT HELD AT SEGE ON MONDAY, THE 23RD DAY OF JUNE, 2025. BEFORE HER WORSHIP VICTORIA AKUA GHANSAH ESQ. AS MAGISTRATE.

CC: GR/SC/DC/B1/12/2025

THE REPUBLIC

VRS

1. BELINDA ADDO SEYRAM

2. STEPHEN ASAMANI (AT LARGE)

JUDGMENT

On the 21st day of October 2024 the accused was arraigned before this court on the charges of Abetment of crime to steal.

A. The accused person herein- Belinda Seyram Addo together with one other, Stephen Asamani who is said to be at large was charged with and arraigned before this court on the following offence of abetment of crim***e, to wit: stealing; contrary to sections 20 (1) of the Criminal Offences Act, 1960.***

The Accused person upon her arraignment before this court, denied the charge against by pleading not guilty to the said charge.

It is without doubt that the obvious legal effect of her pleas- which joined issues on the counts with the prosecution - resulted in the prosecution assuming the burden of proving her guilt on the counts against her beyond reasonable doubt in criminal proceedings of this

nature. This is because under Article 19 (2) (c) of the 1992 Constitution, a presumption of innocence has been created in favour of the Accused upon pleading not guilty as follows;

> ***"Article (2) (c) A person charged with a criminal offence shall…. be presumed innocent until he is proved or has pleaded guilty".***

B. BRIEF FACTS: - Complainant in this case Abraham Koranteng Okornoe is the Assistant accountant for water and sanitation company, Sege, whiles the accused person Belinda Addo Seyram is a business woman residing at Sege. On the 29th day of September, 2024 about 10:30am the Complainant visited the water and sanitation company office at Sege and saw suspect Stephen Asamani now at large who is the security man of the said company loading five (5) pieces of three (3) inches PVC pipes, 6 pieces of 1 inch pipe, 16 pieces of ¾ inches pipes and 14 pieces of 1 inch PVC pipe all valued at GH¢4,788.00 which was kept in the warehouse in an unregistered Apsonic tricycle ridden by Emmanuel Keller. Complainant on seeing the act questioned suspect Stephen Asamani as to where he was loading the items to but couldn't give any tangible answer. On suspicion complainant called the Sege Police Office and in the course suspect Stephen Asamani managed to escape the scene. However, Emmanuel Keller together with his tricycle loaded with the items was brought to the station to assist investigations. In the course of investigation, it came to light that it was the accused person who engaged Emmanuel Keller to pick the items from the water and sanitation company office hence her arrest. Accused person was cautioned and after investigations she was charged with the offence and put before this honourable court whiles efforts are being made to arrest suspect Stephen Asamani to assist investigation.

C. The documents Prosecution intends to rely on are:-

(1) Witness statement of witnesses.
(2) Cautioned statement - EXHIBIT A,
(3) Charged Statement - EXHIBIT B

(4) Photographs – EXHIBIT C.

PW1 is Emmanuel Keller

The witness statement of PW1 was adopted as his evidence in chief.

In his told court he is Emmanuel Keller a plumber working with my madam, Belinda Addo Seyram. That on 29th day of September, 2024 around 10:00am he received a call from Belinda Seyram that she will send him one person's phone number for him to pick some pipes at the Community Water Company, Sege. PW1 further stated about 30 minutes later, he received a phone call from his madam, Belinda Addo Seyram that he should quickly rush to the community water company, Sege with the tricycle and meet one Stephen Asamani alias Aroma. On reaching the Community Water Company, Sege. PW1 met Stephen Asamani alias Aroma who directed him to pack some PVC pipes which was packed within the water company office into the tricycle. As he was packing the PVC pipes, complainant approached us and ask what he was doing there.

PW1 explained to him that it was madam, Belinda Addo Seyram who directed him to meet Stephen Asamani alias Aroma to pack the PVC pipes. Complainant questioned Stephen Asamani alias Aroma but he started behaving strange and before he knew he bolted away. Moment later, the police arrived at the scene and arrested him together with the tricycle to the police station. At the station, PW1 told the police it was his madam, Belinda Addo Seyram who sent him to meet Stephen Asamani alias Aroma to pack the PVC pipes. At the close of his evidence-in-chief Accused failed to cross examine the witness.

PW2 is No. 46518 D/Sgt. Boateng Attram filed on 09/12/2024

In the testimony of PW2 before the court he stated that on 29th of August, 2024 complainant Abraham Koranteng Okornoe the Assistant Accountant of Sege Community Water and Sanitation Agency with the assistance of the police arrested and brought to the station Emmanuel Keller together with unregistered Apsonic tricycle load with 5 pipes of 3 PVC

pipes, 6 pieces of 1 inch pipe, 16 pieces of ¾ pipes and 14 pieces 1 PVC pipes. Complainant reported that same day about 10:50am he visited their office and saw suspect Stephen Asamani now at large who is the security man at the said company together with their Emmanuel Keller loading the items unto the Apsonic tricycle without the consent of the management. As the available investigator the case was referred to him for investigation. PW2 obtained statement from Complainant. Emmanuel keller was interrogated and he stated that it was accused person Belinda Addo Seyram, her madam who instructed him to meet suspect Stephen Asamani at the water and sanitation company and pick the items. Accused person reported herself at the station and she was arrested to assist with investigation. In the cautioned statement of accused person, she told police that it was her husband Michael Tsiki who had travelled to Kenya who called her and asked her to pick 1 PVC pipe from suspect Stephen Asamani so he engaged Emmanuel Keller to go pick the pipe. The case docket was prepared and forwarded to the station officer who instructed the accused person be charged with the offence and put before the court.

Meanwhile, at the close of the case of the prosecution, the court determined that the prosecution had, by their evidence, made out a *prima facie* case against the accused person on the count of abetment warranting her to open her defence to avoid a ruling of the court on the issue against her. ***See section 174 (3) of the Criminal Procedure Act, 1960, Act 30.***

I need to add that even though the prosecution originally filed witness statements for some two other witnesses who are Abraham Koranteng Okornoe the Assistant Accountant and Ebenezer Agyapong Acquah the Assistant Engineer all of Community Water and Sanitation Agency, Sege. However, the Prosecution informed the court they could not find and get them to court to testify in the trial. The court accordingly struck out the said witness statements; and thus, would not be considered in this judgment.

The court adopted witness statement of PW1 and PW2 as their evidence in chief. Accused failed to cross examine the witnesses.

EVIDENCE BY ACCUSED

Accused Belinda Addo Seyram was asked to open her defence. In her defence Accused stated that she is a business woman who is into selling plumbing items. According to Accused the security man who is Stephen has really put me into a very big trouble which she promised that she will get the Security man, she never knew that what he was going to give me were stolen items. She promised that she will get him. Accused added that she transacted business with Stephen Asamani security man on phone. When she contacted him, he was supposed to give her a pipe but not many pipes in the case.

Excerpts from Cross-examination of the accused person by prosecution.

Q. Did he tell you where you are supposed to meet him for the pipe.

A. He earlier told me that he will give it to me at the Agapet filling station and later on directed me to the water company.

Q. You were aware that you have to meet him at Water Company, not so.

A. Yes.

Q. You were going in for 1 pipe, how come you went in for 5 pieces of 1inche of PVC pipe, 6 inches of 1 pipe and 16 pieces of 3/4 pipes and 14 pieces of 1PVC pipe, can you explain that to the Court.

A. Yes, I can explain. I know nothing about that because he was supposed to give me 1 pipe. He is the best person to explain that to the Court.

Q. I am putting it to you that it is something the two of you agreed on that PW1 was going to meet him at the water works company to pick all these PVC pipes mentioned to the Court.

A. I still don't know anything about it.

EVALUATION OF THE EVIDENCE

Before I evaluate the evidence as adduced by both the prosecution and the accused person so as to determine if the prosecution succeeded to prove his guilt beyond reasonable doubt on the above-mentioned charges or counts, I have found it necessary to discuss in some reasonable detail the burden of proof that, the prosecution assumes in this case.

In Ghana, Under the statute, ***sections 11 (2) and 13 (2) of the Evidence Act, 1975, NRCD 323,*** state of the burden of proof on the prosecution as follows:

> ***"11(2) In a criminal action the burden of producing evidence, when it is on the prosecution as to any fact which is essential to guilt, requires the prosecution to produce sufficient evidence so that on all the evidence a reasonable mind could find the existence of the fact beyond reasonable doubt."***
>
> ***"13(1) In any civil or criminal action the burden of persuasion as to the commission by a party of a crime which is directly in issue requires proof beyond reasonable doubt."***

It is also statutorily provided that;

> ***"Unless it is shifted, the party claiming that a person has committed a crime or wrong doing has the burden of persuasion on that issue". See section 15 of the Evidence Act, 1975, NRCD 323.***

Similarly, in the case of ***Donkor v The State [1964] GLR 598, SC***, it was held inter alia by the Supreme Court of Ghana that in criminal trials, the burden of proof in the sense of the burden of establishing the guilt of the accused is generally on the prosecution or The Republic. So that is the burden the prosecution assumes in the case. However, the law is generally that an accused person in a criminal trial does not assume any burden of proof. He has no duty to prove his innocence or disprove anything. At worst, an accused only has to lead evidence to raise a reasonable doubt as to his guilt. And even with that the standard

is lower- on the balance of probabilities. See ***sections 11 (3) and 13 (2) of the NRCD 323 (supra).***

The above is in line with the requirement and duty of the courts to consider any explanations or defence that an accused give and which favors his or her case on the contested issues. In the case of ***Attah v Commissioner of Police (1963) 2 GLR 460, SC,*** the judgment of the trial district court even though confirmed by the High Court, was however quashed on appeal to the Supreme Court because the judgment of the trial court failed to consider the defence fully in that it did not consider the accused statement on caution or even the evidence of his witnesses.

To satisfy the Constitutional, statutory and Common Law standards of proof beyond reasonable doubt, the law is that;

> "***the prosecution has a duty to prove the essential ingredients of the offence with which the appellant (accused) and the others have been charged…" See the case of Frempong alias Iboman v The Republic [2012] 1 SCGLR 297, SC per Dotse JSC.***

In the same vein, in the case of ***Homenya v The Republic (1992) 2 GLR 305, Acquah J (as he then was),*** sitting at the High Court, Ho, held and reiterated the position of the law thus;

> **"…the first and mandatory duty of a trial judge in a criminal trial is to examine the case of the prosecution so as to determine whether the prosecution had established all the essential ingredients of the charge leveled against the accused person…"**

I will accordingly discuss what the elements of the offence is and then determine whether on the evidence as adduced by the prosecution as well as on the competing facts, the respective charge have been established or proven against the accused person.

In doing that, the court has distilled from the whole of the evidence, the following as the main issue for determination in this judgment:

1. ***Whether or not the A1 Abetted with one other at large to steal PVC Pipes from the Complainant company.***

The offence of Abetment is governed by section 20 of Criminal offences Act 1960 (Act 29);

> A person who, **directly or indirectly, instigates, commands, counsels, procures, solicits, or in any other manner purposely aids, facilities, encourages, or promotes, whether by a personal act or presence or otherwise, and a person who does an act for the purposes of aiding, facilitating, encouraging, or promoting the commission of a criminal offence by any other person, whether known or unknown, certain, or uncertain**, commits the criminal offence of abetting that criminal offence, and of abetting the other person in respect of that criminal offence.

It is key to note that if the crime is committed, the abettor is liable as if he committed the crime. He receives the same punishment as the person who committed the crime.

If the crime is unsuccessful, and the punishment imposed is death, the abettor will be liable to life imprisonment. If the crime is unsuccessful and the punishment imposed is not that of death, the abettor will be liable as if the crime was committed. It is immaterial the fact that the person who supposedly committed the crime is held innocent. An abettor can be guilty but the person who committed the crime may be held innocent as held in the case of **Eddie v The Republic**.

An abettor may be tried separately from the person who committed the substantive offence. This stems from the principle that their liabilities are different.

The crime of abetment is committed when a person renders assistance to another for the purpose of committing a crime, and thereby makes a contribution to the doing of a criminal act. A person who commits the crime, that is the principal actor, may have been supported by many persons who played various roles to ensure the commission of the crime these persons cannot be permitted to escape the grasp of the law thus, the need to punish them. The import of the rules of accessorial liability is to ensure that each of without their individual assistance the principals may never have attempted the crime.

For a charge of abetment to succeed, the act complained of must precede or be contemporaneous with the commission of the offence

In the case of **COP v SAPEI & NYAMEKYE** the accused was charged with abetting a conspiracy to steal and the stealing of blouses. The act which was said to constitute an abetment was allowing the vehicle carrying the stolen to pass the check point unchecked. That is, after the commission of the offence. HELD: an act constituting abetment of a crime must precede it or must be done at the very time when the offence is committed. Abetment must be contemporaneous in place, time and circumstance with the commission of the offence. Sarpey's conduct although suspicious, did not amount to abetment.

In the instant case the Accused admitted that she had a conversation with Asamani who is at large on phone. And ended up that he was going to give her a pipe and not all the number of pipes parked into the tricycle. Again, there had been a prior agreement of a meeting place Agapet filling station which later they changed to the compound of the Community Water and Sanitation Agency, Sege. Accused called PW1 and gave him time to pick the pipes from the Water Company, Sege. It must be noted that the Water Company is not a wholesale or Retail Plumbing Company. The person accused abetted the crime has abandoned his job and currently at large. He just compromised his position. As the security on duty how he came by those items needs to be questioned. In the brief fact of the case, Accused mentioned her husband who was in Kenya as the one who instructed her to pick one pipe. At this juncture the number of the pipes is immaterial. The court cannot tell whether accused said

that to prove her innocence. To say that he agreed to give me one pipe is a confession and admission of guilt. From the look of things, it seems there are more people in the picture than the eyes can see.

The charged with abetment that is the role Accused played in the commission of the substantive offence of stealing. She provided the necessary support by sending PW1 to use her tricycle to convey the stolen pipes. Your absence from the crime scene does not exculpate you from liability. Any such role played is significant in the eyes of the law. You procured the necessary tools for facilitating the commission of the crime and in Aiding you extended some form of assistance to the commission of the offence.

The court would like to comment on the failure of the Accused to cross examine the witnesses.

Generally, cross examination is subject to the rule against the admissibility of evidence... As much as possible, when material facts are deposed to in examination in chief which is disputed by a party cross examining, it must be challenged on cross examination by the cross examiner while at the same time putting his case across for the witness to deny or admit that fact. It has been held in our courts that failure to cross examine on such vital issues must be taken to be an admission by the party on whose behalf the cross examination it was to be conducted. Failure to cross examine a witness especially on material issues can have significant consequences potentially leading to the acceptance of the witness testimony as correct and potentially impacting the outcome of a case.

In Re JOHNSON DECEASED DONKOR v PREMPEH [1975] 2 GLR182-192

When material facts are deposed to in evidence-in-chief which disputed by a party it must be challenged on cross examination.

In the case of **Billa v Salifu [1971]2 GLR 87** the court held that "the failure of the Appellant to challenge this evidence was in effect an admission of the allegation. It was also stated in **Lanquaye v the Republic [1976] 1 GLR 1** the failure of prosecution to challenge the appellants evidence …implied acceptance of the truth of the evidence.

In applying the above authorities to the instant case, I find and hold that the prosecution succeeded to prove the guilt of the accused person, Belinda Seyram Addo, beyond reasonable doubt. The Accused is thus convicted on the charge of abetment of crime she is found guilty accordingly.

SENTENCING

The punishment for abetment of crime is provided for under section 21(1) of Act 29/1960 (supra) as follows:

If the crime is unsuccessful and the punishment imposed is not that of death, the abettor will be liable as if the crime was committed. Accused mitigated her sentence. The court considered that Accused was a first time offender and very remorseful. She is sentenced to pay a fine of 200 penalty units in default serve … prison. This is to serve as a deterrence to other prospective offenders.

(SGD) VICTORIA A. GHANSAH

(MAGISTRATE)